

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

X

NYASIA DOCKERY

Index No.

Plaintiff,

ECF

Verified Complaint

-against-

**Plaintiff Designates Bronx
County as the Place of Trial**

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, AND POLICE OFFICER, MCKNIGHT,
IN HIS INDIVIDUAL AND POLICE OFFICER JOHN DOE
No.1, IN HIS INDIVIDUAL CAPACITY.

Jury Trial Demanded

Defendants,

X

Plaintiff, Nyasia Dockery, by her attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for her Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and police officer McKnight and John Doe No.1, in his individual capacity.

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in their unreasonable and unlawful search and seizure of the Plaintiff, Ms. Nyasia Dockery as Ms. Dockery was lawfully walking down a public street during the morning hours of May 8, 2020. The Defendant officers placed Plaintiff's in a New York City Police Department motor vehicle and drove Ms. Dockery to the 41ST police precinct without probable cause or legal justification.

2. Defendants, Police officers McKnight and John Doe No.1, knowingly and willfully with deliberate indifference to Plaintiff's Constitutional rights engaged in a pattern of abuse against the Plaintiff by holding the Plaintiff against her will knowing there lacked reasonable

suspicion to stop Ms. Dockery and a lack of probable cause to have reasonably believed that Plaintiff was engaged in criminal activity at the time of her arrest.

3. That Plaintiff was caused to be seized and deprived of her liberty without probable cause or legal justification.

4. Plaintiff Nyasia Dockery now brings this action pursuant to 42 U.S.C Section 1983, and under New York State Law against the Defendant for violating Plaintiff's Constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

5. Plaintiff's claims against the Defendants also arise pursuant to New York State law.

JURISDICTION AND VENUE

6. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the State of New York.

7. This action arises under the Fourth, and Fourteenth Amendments to the Constitution of the United States, and pursuant to 42 U.S.C Section 1983, and 1988, and under New York State Law.

8. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action predicated under 42 U. S. C. Section, 1983.

9. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

10. Plaintiff, Nyasia Dockery, African American, citizen of the United States and resident of the State of New York.

11. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

12. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

13. That at all times relevant hereto, the City of New York employed the Defendant Officers involved in this incident.

14. That at all times relevant herein, Defendants Police officers McKnight and John Doe No. 1, were duly appointed as police officer of the New York City Police Department and were directly involved arresting and detaining the Plaintiff without probable cause.

15. That the Defendants police officers McKnight and John Doe No. 1, are believed to be assigned to the 41st precinct located on 1035 Longwood Ave. Bronx, New York.

16. That the Defendant police officers were at all times mentioned in this Complaint, agents, servants, and employees, acting within the scope of their employment by the New York City Police Department acting within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

17. That at all times relevant hereto, the New York City Police Department ("NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers which caused the deprivation of Plaintiff's liberty.

18. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, policies and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

19. That at all times relevant hereto, Defendant New York City Police Department was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

20. That at all relevant times, the individual police officers involved in this incident acted under the color of state law.

21. At all times relevant herein, the police officers involved in the underlying incident were and still remain police officers employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department within the scope of their employment and as such acted under color of state law.

JURY DEMAND

22. Plaintiff demands trial by jury.

NOTICE OF CLAIM

23 On or about May 15, 2020, Plaintiff, in furtherance of her New York State causes of action, filed a timely notice of claim well within the statutory requirement of ninety days from the date of the incident alleged herein against the named Defendants and the City of New York, New York City Police Department and police officers Brown, Lobb and Martin in compliance with General Municipal Law Section 50-h.

24. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

25. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

26. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

27. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

28. That by reason of the foregoing, Plaintiff, Nyasia Dockery has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

29. On or about May 8, 2020, at approximately 3: 00 a.m. Ms. Dockery was walking on Shakespeare Ave, near West 170TH Street between Nelson Ave., Bronx, New York when she was suddenly stop by person who appeared from an unmarked vehicle and stopped Ms. McKnight and her two companions on of whom was her brother.

30. The unknown person who initiated the stop was a male Caucasian along with another Caucasian officer also in dressed in plain clothes.

31. Ms. Dockery politely asked the individuals whom she now suspected were undercover police officers, "why are we being stopped?"

32. The Defendant police officers responded by stating that they were stopped "due to a police investigation that was going on." Officer McKnight is believed to have made the statement.

33. Plaintiff and her companions were all cooperative even when the Defendant police officers began to pat down Plaintiffs outer clothing.

34. The Defendants police officers lacked reasonable suspicious to have stopped and frisked Ms. Dockery or her companions.

35. Nevertheless, officer McKnight without probable cause placed handcuffs on the Plaintiff and the other individuals and placed Ms. Mc Knight in the back of his police vehicle where the Plaintiff was then taken to the 41 police precinct in the City of the Bronx, State of New York.

36. That during the time Plaintiff was held in custody at the precinct, Ms. Dockery was taken inside a bathroom where she was searched again by a female police officer.

37. No contraband was found on the Plaintiff as a result of the search.

38. Ms. Dockery again asked the officers, including officer McKnight "What am I being charged with"?

39. Officer McKnight and the other officers at the 41st police precinct refused to inform the Plaintiff why she was arrested and the charges she was accused of violating.

40. Ms. Dockery was placed in a holding area and handcuffed to a bench as she waited for a response from the officers at the 41st police precinct.

41. Plaintiff was handcuffed to a bench in a room with the doors shut for approximately four (4) hours without being told by the arresting police officers the reasons for her arrest.

42. Ms. Dockery told the police that she had not committed any crimes and that she wanted to go home.

43. Plaintiff was forced to sit in a cold room with one of her hands handcuffed to a bench for hours without the ability to move

44. Hours later, officer McKnight informed the Plaintiff that he found a fire arm.

45. Plaintiff immediately informed officer McKnight that she knew nothing about any firearm and demanded to be released from custody.

46. Officer McKnight responded by telling the Plaintiff that she had to wait for cops with suits. (presumably other Detectives).

47. Plaintiff told officer McKnight that she had just stated a new job and that her arrest could jeopardize her new job.

48. Ms. Dockery demanded to use the phone to give notice to her employer that she would not be able to appear for work.

49. Plaintiff was denied her right to make a telephone call.

50. Ms. Dockery, chained to a bench for hours , informed officer McKnight that she was pregnant and that she was having pains.

51. Officer McKnight again ignored the Plaintiff that she was going home soon.

52. Ms. Dockery was forced to lay down on a hard-wooden bench with one hand handcuffed as she cried out loud for help.

53. Plaintiff had an urgent need to use the bathroom and yelled out loud to get the attention of the police officers inside the precinct because she was having extreme pain.

54. Officer McKnight arrived sometime later and escorted the Plaintiff to the bathroom.

55. Officer McKnight, a male Caucasian came inside the bathroom.

56. Ms. Dockery felt embarrassed as she pulled up her pants as officer McKnight looked on.

57. Plaintiff urged the officers inside the 41st police precinct to take her to the emergency room due to the pain she was experiencing from her pregnancy.

58. Ms. Dockery was told to wait because she was going to be released from custody

59. On or about May 8, 2020, Ms. Dockery was released from custody.

60. That no charges were filed against the Plaintiff by the New York City Police Department or officer McKnight.

61. That approximately two days after Plaintiff was released from police custody, Ms. Dockery still suffering from emotional stress, was informed by hospital staff that she had miscarriage.

62. That the New York City Police Department has established an unlawful pattern and practice of unlawful seizure of African Americans and holding such group of individuals in custody without probable cause that is so widespread that it has become an informal policy of in violation of the Fourth and Fourteenth Amendments to the Constitution of the United States.

63. Moreover, the NYPD has engaged in a widespread pattern and practice of arresting African Americans without probable cause and releasing such individuals from custody and failing to give such individuals held in custody the names of the officers involved in such wrong doing.

64. That the pattern and practice set forth above violates the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

65. The practice mentioned herein is an blatant abuse of power and a violation of law for which Plaintiff now demands compensation for her past, present and future injuries suffered caused by the Defendants.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
NYASIA DOCKERY AGAINST THE DEFENDANTS, POLICE OFFICERS, McKnight
AND JOHN DOE NO. 1 FOR FALSE ARREST AND FALSE IMPRISONMENT
PURSUANT TO 42. U. S.C. SECTION 1983, AND UNDER ARTICLE 1 SECTION 12, OF
THE CONSTITUTION OF THE STATE OF NEW YORK**

66. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “ 65”, with the same force and effect as though more fully set forth at length herein.

67. That at all time herein mentioned and upon information, and belief, the Defendant Police Officers, McKnight and John Doe No. 1, were, and still are employed as members of the New York City Police Department believed to be assigned to the 41th police precinct in the Bronx, New York.

68. That at all time herein mentioned the Defendant, City of New York, maintained, operated and controlled the New York City Police Department within the City of New York.

69. That at all time hereinafter mentioned the City of New York, employed the officers in the instant action in the New York City Police Department.

70. That at all times hereinafter mentioned the Defendant police officers were employed by the Defendant City of New York, as servants, agents, and/or employees of the Defendant City of New York, and were acting within the scope of their employment.

71. On or about May 8, 2020, at approximately 3: 00 a.m. Ms. Dockery was walking on Shakespeare Ave, near West 170TH Street between Nelson Ave., Bronx, New York when she was suddenly stop by person who appeared from an unmarked vehicle and stopped Ms. McKnight and her two companions on of whom was her brother.

72. That the unknown person who initiated the stop was a male Caucasian police officer along with another Caucasian officer also in dressed in plain clothes.

73. Ms. Dockery politely asked the individuals whom she now suspected were undercover police officers, “why are we being stopped?”

74. The Defendant police officers responded by stating that they were stopped “due to a police investigation that was going on.” Officer McKnight is believed to have made the statement.

75. The Defendants police officers lacked reasonable suspicious to have stopped and frisked Ms. Dockery or her companions.

76. Defendant officer McKnight without probable cause placed handcuffs on the Plaintiff and the other individuals and placed Ms. McKnight in the back of his police vehicle where the Plaintiff was then taken to the 41 police precinct in the City of the Bronx, State of New York.

77. That the Defendants, their agents, servants, and/or employees, intentionally, and without legal justification, unlawfully, and unreasonably, searched, seized, imprisoned, detained, and restrained the Plaintiff.

78. That at all time herein mentioned, Plaintiff was unreasonably seized, detained, and imprisoned by the Defendants without probable cause, legal justification, or consent of the Plaintiff.

79. That at all times herein mentioned, Ms. Dockery was falsely imprisoned, detained, restrained, harassed and humiliated by the Defendants police officers who are current members of the New York City Police Department of the City of New York, and who are agents, servants and/or employees of the Defendant, City of New York.

80. The Defendants acted under and within the scope of their employment and under color of law at the time of the incident complained of herein.

81. That at all times herein mentioned, the Defendants intended to confine Plaintiff without privilege and without probable cause.

82. Plaintiff was conscious of his confinement and did not consent to such confinement.

83. That Defendants violated Plaintiffs' Fourth Amendment rights under the Constitution of the United States which guarantees Plaintiff's right to be free from unreasonable searches and seizure.

84. Plaintiff was conscious of her confinement and did not give consent.

85. That the Defendant police officers as agents, servants and, or employees of the New York City Police Department, intentionally, and without legal justification, including lack of probable cause, unlawfully, and falsely arrested and falsely imprisoned Plaintiff, Nyasia Dockery.

86. That as a result of the false imprisonment, detention, harassment, humiliation and embarrassment, Plaintiff Dockery was caused to suffer severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and deprivation of his civil rights, and freedom, under the Constitution of the United States and under Article I Section 12, of the Constitution of the State of New York.

87. That Plaintiff's arrest, false imprisonment and detention by the Defendant police officers constituted a malicious, wanton, and reckless act and degradation and deprivation of Ms. Dockery's liberty without due process of law.

88. That this action is brought pursuant to 42. U.S.C. Section 1983, which recognizes Plaintiff's right to seek legal redress and compensation for the Constitutional violations committed by the Defendants.

89. That as a direct, and proximate result of the acts, and omissions of the Defendants herein described, Ms. Dockery was caused to suffer great mental pain and agony, and emotional pain, anguish and suffering and harm.

90. That in the manner describes herein, the Defendants acted carelessly and recklessly with total disregard and with deliberate indifference to the constitutional rights of the Plaintiff.

91. That the Defendants knew, or should have known that their actions would or probably would inflict extreme emotional distress upon the plaintiff.

92. That by reason of the foregoing Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF NYASIA DOCKERY AGAINST DEFENDANTS, POLICE OFFICERS MCKNIGHT AND JOHN DOE NO.1, PURSUANT TO 42 U.S.C SECTION 1983, FOR VIOLATING PLAINTIFFS' RIGHT TO BE FREE FROM UNREASONABLE SEARCH AND SEIZURE.

93. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "92," with the same force and effect as though more fully set forth at length herein.

94. Section 1983 states in relevant part that:

" Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress..." 42 U.S.C Section 1983,

95. Plaintiff's federal causes of action are brought against the Defendant police officers pursuant to 42 U.S.C. Section 1983, for violations Ms. Dockery's federal rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States for the Defendant's unreasonable search and seizure of Plaintiff May8, 2020.

96. Defendants McKnight and John Doe No.1, violated Plaintiff's rights under the Fourth Amendment by holding the Plaintiff in custody against her will for hour chained to a bench

inside the 41st police precinct without probable cause or legal justification as described more fully in the paragraphs set forth above.

97. The manner in which the Plaintiff was held in custody unable to leave was objectively unreasonable under the circumstances as set forth herein.

98. Plaintiff was handcuffed and chained to a bench while the Defendant's police officers attempted to find evidence to support their unlawful arrest of Ms. Dockery.

99. Officers McKnight and John Doe No. 1, conducted an unlawful search and seizure of Plaintiff as she was lawfully walking down a public street.

100. That the Defendants conspired together to violate Plaintiff's rights to be free from the unreasonable search, seizure and deprivation of liberty by the Defendant police officers without due process of law.

101. In the manner described herein, the Defendants acted with deliberate indifference and with reckless disregard of the Plaintiff's constitutional rights.

102. Ms. Dockery was deprived of her rights, privileges and immunities secured to her under the Constitution and laws of the United States, and the State of New York including but not limited to the Plaintiff's rights secured under the Fourth, and Fourteenth Amendment to the Constitution of the United States, and pursuant to Article I, Section 12 of the Constitution of the State of New York.

103. That the Defendant police officers, acting in their individual, and official capacity, and under color of law, conspired together and with others, and reached a mutual understanding to undertake a course of conduct that violated Plaintiff's rights, privileges, and immunities thereof.

104. As a direct and proximate result of the conspiracy between the Defendant officers, Ms. Dockery was unreasonably searched, seized, and falsely imprisoned in violation of Plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

105. As a consequence thereof, Plaintiff, has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
NAYSIA DOCKERY AGAINST THE CITY OF NEW YORK AND POLICE
OFFICERS MCKNIGHT AND JOHN DOE NO. 1, PURSUANT TO 42 U.S.C
SECTION 1983, FOR VIOLATING PLAINTIFF'S RIGHTS PROTECTED UNDER
THE DUE PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT TO THE
CONSTITUTION OF THE UNITED STATES**

106. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "105", with the same force and effect as though more fully set forth at length herein.

107. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of Ms. Dockery's right to free from the deprivation of liberty without due process of law.

108. That the Defendant Officers 'detainment and seizure of the Plaintiff as she was walking down the street and arrested and held down to a bench inside the 41st police precinct in the manner more fully set forth in the above paragraphs constituted a display of deliberated indifference to Plaintiff's right to be free from the deprivation of liberty without due process of law..

109. As direct and proximate result of the Defendant officers' conduct, Plaintiffs' rights to Due Process of Law were violated causing Plaintiff to suffer humiliation, degradation, embarrassment pain, suffering, and mental anguish.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE DEFENDANTS,
POLICE OFFICERS MCNIGHT AND JOHN DOE NO. 1, ON BEHALF OF THE
PLAINTIFF UNDER NEW YORK STATE LAW FOR BATTERY.**

110. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "109", with the same force and effect as though more fully set forth at length herein.

111. That the Defendant police officers willfully and deliberately handcuffed Ms. Dockery to a bench preventing her from moving for more than four hours without allowing Plaintiff to use the restroom at the 41st police precinct without cause or justification, and without the consent of the Plaintiff, did wantonly, unlawfully, and intentionally engaged in unlawful physical contact which harmed the Plaintiff as described more fully above.

112. That as a result of the foregoing battery on the part of the Defendants, police officers McKnight and John Doe No. 1, Lobb, Ms. Dockery was caused to suffer emotional injuries.

113. That Ms. Dockery has suffered and will continue to suffer mental agony from the aforementioned events.

114. That based on the foregoing unreasonable actions of the Defendants, Plaintiff has been damaged and is hereby seeking compensation for his emotional pain and suffering which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFFF
AGAINST THE CITY OF NEW YORK PURSUANT TO RESPONDEAT SUPERIOR.**

115. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "114", with the same force and effect as though more fully set forth at length herein.

116. That the City of New York hired and supervised Defendants police officers McKnight and John Doe No.1, who wrongfully and without probable cause arrested Ms. Dockery and held her in custody chained to a wooden bench for several hours in deliberate indifference to Plaintiff's Constitutional rights causing Plaintiff's extreme emotional stress.

117. That the Defendants committed the wrongs stated herein without probable cause, while acting under color of law and within the scope of their duties as employees of the City of New York and the New York City Police Department.

118. As a result, the City of New is liable for the unlawful acts of their employee and subordinates, under respondeat superior.

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDENTS POLICE OFFICERS MCKNIGHT AND JOHN DOE NO. 1. FOR INTENTIONAL INFLICTION OF EMOTIONAL STRESS UNDER THE COMMON LAW OF THE STATE OF NEW YORK.

119. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "118" with the same force and effect as though more fully set forth at length herein.

120. That the Defendant police officers, agents, servants and/or employees, engaged in actions intended to inflict emotional trauma on the Plaintiff,

121. That by reason of the foregoing, the Plaintiff has suffered physical pain and suffering, mental and emotional distress due to Defendants' unlawful and reckless actions as more fully described herein.

122. Ms. Dockery's claim for the Intentional Infliction of Emotional Distress was caused by the Defendants police officers, McKnight and John Doe No.1. who intentionally and without reason, privilege or probable cause arrested the Plaintiff and handcuffed to a wooden bench

inside the 41st police precinct knowing that the Plaintiff had not been involved in any form of criminal conduct.

123. The Defendant police officers McKnight and John Doe No.1, willfully and deliberately held Plaintiff in custody handcuffed with one hand chained to a bench for several hours without charging the Plaintiff with any crime.

124. That the Defendant police officers McKnight and John Doe No. 1, willfully and deliberately held Plaintiff in custody handcuffed to a bench for hours knowing that the Plaintiff was pregnant and complained of extreme pain without the ability to move was a wanton display of abuse of authority and power which caused Ms. Dockery unnecessary pain and suffering.

125. That the acts described herein committed by police officers McKnight and John Doe No.1, exhibited extreme and outrageous conduct, which exceeded the bounds of decency expected in a civilized society.

126. That the officer's misconduct was intended to inflict severe emotional stress upon the Plaintiff and which proximately and directly caused Plaintiff to suffer a severe mental stress.

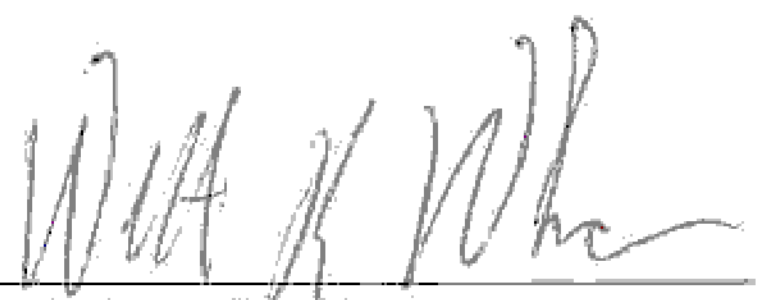
127. As a direct and proximate result of the misconduct and abuse of authority by Defendant police officers McKnight and John Doe No.1, Plaintiff has been injured and has sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff, Nyasia Dockery respectfully request that this Court grant the following relief jointly and severally the Defendants:

- A. Compensatory damages in the amount to be determined by a jury at trial.
- B. Punitive damages against Police Officers, McKnight and John Doe No. 1.
- C. An order awarding Plaintiff reasonable attorneys' fees under 42.U.S.C Section 1988, together with the costs of this action.

D. Such other and further relief as the Court may deem just and proper.

Dated: September 10, 2020
Bronx, New York

By 

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